

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION**

KATHRYN COPELAND,

Plaintiff,

v.

WEINSTEIN MANAGEMENT CO., INC., et al.,

Defendants.

Civil Action No. _____

**EXHIBIT INDEX TO PLAINTIFF'S VERIFIED COMPLAINT AND
EMERGENCY APPLICATION FOR TEMPORARY RESTRAINING ORDER**

Plaintiff submits the following exhibits, grouped by legal element. Each exhibit is incorporated by reference into the Verified Complaint pursuant to Fed. R. Civ. P. 10(c). Cross-references in the form (*Ex. N*) in the Verified Complaint identify the exhibit numbers below.

Ex.	Document	Legal Element	Compl. ¶
I. DISABILITY STATUS AND MEDICAL PREDICATE			
1	SSA Fully Favorable Determination of Total Disability, dated April 10, 2026 (effective June 8, 2023)	Federal agency determination establishing disability under FHA § 3602(h) and ADA § 12102	¶ 9
2	Dr. Isabel S. Huang Letter of Support, September 10, 2025 (UT Southwestern PM&R)	Initial medical baseline; treating provider since October 8, 2024	¶ 18
3	Dr. Isabel S. Huang Letter of Support, December 21, 2025	Contemporaneous medical findings; documents September 22 property removal by unlicensed personnel; documents December 4, 2025 hearing-induced medical flare	¶¶ 18, 35, 42–43

4	Dr. Isabel S. Huang Letter to Court, February 25, 2026	Updated medical documentation for ADA accommodation requests	¶ 18
5	Dr. Kim Tran Residual Functional Capacity Questionnaire, September 11, 2025	Physical residual functional capacity documentation	¶ 18
6	Dr. Chiriboga Letter, March 25, 2026	MDD recurrent, ADHD combined type, PTSD, mild cognitive impairment; recommends written communications	¶ 18
7	Plaintiff's Physical Therapist Letter (forthcoming)	Hydrotherapy and pain-management equipment medical necessity	¶ 18
7A	Weinstein Properties Corporate Website "Our Values" Page (www.weinsteinproperties.com), screenshot captured December 5, 2026, declaring corporate Values including "EMBRACING A CULTURE OF INCLUSION AND OPENNESS," linking to a published Accessibility Policy, and displaying the Equal Housing Opportunity commitment	Corporate public commitments juxtaposed against documented conduct; Kolstad showing of corporate knowledge	¶¶ 10, 96, 115
II. ACCOMMODATION REQUESTS AND DEFENDANTS' REFUSAL			
8	June 27 and June 30, 2025 ADA/FHA Accommodation Requests to Weinstein; July 1 deadline notice to Lile Benaicha with TDLR #0000018107 and HUD complaint numbers	Protected activity; actual written notice to General Counsel	¶¶ 21–22

9	Kodi Walker email (June 30, 2025, 5:42 p.m.): "we are not able to accommodate requests for relocation or hotel reimbursement"	Same-day refusal; § 3604(f)(3)(B) violation	¶ 22
10	Recorded call with Jessika Calkins, July 5, 2025: "We're not required to relocate you" (4+ times); corporate-level confirmation	Corporate ratification of refusal; ADA subordinated to lease	¶ 23
11	August 14, 2025 Brochstein/Philadelphia Indemnity Written Commitment: housing "until remediation is completed"; November 3, 2025 revocation	Reliance, breach, and § 3617 housing-termination evidence	¶¶ 24, 40
12	August 18, 2025 Federal DTPA/FHA Demand Letter to Weinstein and ServPro	Protected activity establishing notice	¶ 25
III. DEFENDANTS' OWN CONTRACTOR CONFIRMED CONTAMINATION			
13	BioTex Environmental Testing Report, June 18, 2025: Unit 2145 "unfit for human occupancy"	Predicate medical/environmental need for accommodation	¶ 20
14	Dallas Mold Consultants Report and MAC Protocol, September 8, 2025: Chaetomium contamination; "all contents in the apartment should be considered contaminated"; HVAC condensation drain line as cause; 16 TAC §§ 78.110–78.150 framework applied	Defendants' own retained evidence; concealed from three state-court hearings; contradicted by May 11 MSJ — implicates Tex. Disc. R. 3.03 candor duty	¶¶ 27, 36, 39, 41, 45

IV. PROPERTY DEPRIVATION AND HOUSING TERMINATION

15	Zavarelli emails, October 3 and October 5, 2025: personal inspection of medical equipment, children's photographs, and unauthorized removal to storage without lab testing or court order	Unauthorized property detention; coercive conditions; § 3617 / § 3604(f)(3)(B)	¶¶ 37–38, 45
16	Worthington Hotel Invoice (\$17,937.19, Sept. 28–Oct. 27, 2025); Dog Boarding Receipt (~\$2,550); approximately \$20,487/month substitute housing previously paid by Defendants	Reasonableness of \$18,000/month controlled-mechanism alternative relief	¶ 40
17	Texas Health Fort Worth ER After Visit Summary, September 10, 2025; Police Report No. 250067642; Hospital Notes	Documented assault and injuries during ongoing accommodation failure; predicate to forced return to contaminated unit	¶¶ 28–30

V. DECEMBER 29, 2025 EMERGENCY MOTION (PENDING UNRESOLVED)

18	Plaintiff's Emergency Motion for Interim Housing Relief and Replacement of Medical Equipment, filed December 29, 2025, 141st District Court Cause No. 141-370402-25	\$18,000/month + \$20,000 equipment replacement request; 134+ days unresolved	¶¶ 42–44, 78
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VI. MULTI-FORUM INTERFERENCE (NOV. 2025 – MAY 2026)

19	Coordinated Motions to Strike Dr. Huang's Correspondence in 141st DC and JP3, both filed January 5, 2026	§ 12203(b) coordinated evidence suppression in two forums simultaneously	¶¶ 51, 79
20	January 8, 2026 Written Statutory Notice to Benaicha and Brochstein citing 42 U.S.C. § 12203(b) and § 3617 by name	Trigger for First Formal Corporate Ratification on January 12–13, 2026	¶¶ 80, 89

21	February 13, 2026 Order Striking Plaintiff's Notice of Appeal in JP03-25-SC00028212 during acute neurological medical event	Use of Vexatious Litigant Order Plaintiff contends is jurisdictionally defective; ADA accommodations denied during hearing	¶ 56
21A	April 8, 2026 Cease and Desist Letter to Wentz & Zavarelli and Sortor, copying Benaicha and Brochstein, regarding third-party contact with the ABA to suppress Plaintiff's "Access Is Not Advantage" submission	Protected activity; predicate to Second Formal Corporate Ratification	¶¶ 81, 92
21B	April 23, 2026 Motion for Sanctions filed by Defendants against Plaintiff following the April 8 Cease and Desist	Second Formal Corporate Ratification; § 3617 retaliation against protected activity	¶¶ 81, 92
22	Writ of Possession executed February 18, 2026 (JP05-25-E00044950); Plaintiff homeless and personal property in Defendants' storage units	§ 3617 forcible exclusion; continued detention of disability-related property	¶ 71
VII. THE DECKER AMICUS — UNAUTHORIZED THIRD-FORUM INTERFERENCE			
23	Weinstein/WMRI Dallas X Unauthorized Amicus Brief filed May 6, 2026 at 11:09 a.m. CDT in Copeland v. Decker, Cause No. 236-363132-25, 236th JDC Tarrant County (filed by Michelle Sortor, Wentz & Zavarelli)	Third Formal Corporate Ratification; § 3617 / § 12203(b) interference; objectively baseless under PRE/Lakewood	¶¶ 83, 93
24	Sortor Transmittal Letter to 141st District Clerk, May 6, 2026: Weinstein's express purpose to protect position in their own 141st case	Documents non-party litigation interest as stated purpose; defeats Noerr-Pennington and amicus legitimacy	¶ 83

25	Plaintiff's Motion to Strike Unauthorized Amicus Brief, filed May 8, 2026 at 10:31 a.m. CDT in 236-363132-25, invoking 42 U.S.C. § 12203(b) and 28 C.F.R. § 35.134(b)	Plaintiff's protected activity under § 3617 / § 12203(b)	¶ 84
26	May 8, 2026 Email from Court Coordinator Angie D. Wierzbicki (233rd JDC) confirming Judge Newell will consider all submissions by 5:00 p.m. CDT May 15, 2026	Establishes deadline for federal relief; basis for ruling-by-May-14 request in narrow TRO	¶ 85
27	May 6, 2026 Fifth Circuit Order in Copeland v. Tarrant County, et al., No. 26-10389 (denying injunction pending appeal; Haynes, J., disagreeing in part)	Establishes Newell as named individual defendant in pending 5th Cir matter; supports rehearing petition grounds	¶ 85
VIII. PRE-SUIT FINAL NOTICE, MSJ, AND POST-NONSUIT REILING (MAY 2026)			
28	May 10, 2026 Pre-Suit Federal Civil Rights Demand Letter to Allison Weinstein, Ivan Jecklin, and counsel of record (9:00 a.m. CDT May 11 deadline); proof of email service	Final pre-suit notice and refusal-to-cure predicate; direct personal notice to Allison Weinstein	¶¶ 6, 12, 90
29	Defendants' Combined Motion for Traditional and No-Evidence Summary Judgment, filed May 11, 2026 (144 pages)	Fourth Formal Corporate Ratification; § 12203(b) interference; contradicts Defendants' own September 8 contractor report	¶¶ 6, 45, 94
30	Plaintiff's Notice of Nonsuit Without Prejudice, Tyler eFile Envelope No. 114755572, filed May 11, 2026 at 7:58 p.m. CDT	Federal-forum-preserving exercise of right under Tex. R. Civ. P. 162; effective on filing per In re Bennett	¶¶ 6, 95
31	Litigation Risk Analysis (sent with May 10 demand letter)	Pre-suit good-faith notice of legal exposure; refusal-to-cure predicate	¶ 6

32	Demand Letter Exhibits (sent with May 10 demand letter)	Pre-suit documentary record; refusal-to-cure predicate	¶ 6
33	Defendants' Refiled Combined MSJ, Tyler eFile Envelope No. 114772665, filed May 12, 2026 at 10:33 a.m. CDT by Courtney Cotten (Wentz & Zavarelli); Service Notification dated 12/05/2026 11:19 AM CST	Fifth Formal Corporate Ratification; refileing against nonsuited claims with overnight notice and Tyler eFile service on counsel of record	¶¶ 6, 95

Plaintiff reserves the right to supplement this Exhibit Index with additional documentary support before any hearing on the requested temporary restraining order or preliminary injunction.

Respectfully Submitted,



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Dated: May 12, 2026